BEFORE THE NATIONAL COMPANY LAW TRIBUNAL,

PRINCIPAL BENCH

NEW DELHI

Company Application No.CA (CAA)145/PB/2018

Judgment dated: 16.10.2018

Coram:

CHIEF JUSTICE (Rtd.) SHRI M.M. KUMAR,

HON'BLE PRESIDENT

&

MR. S.K. MOHAPATRA,

MEMBER (TECHNICAL)

In the matter of:

Sections 230-232 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements, and Amalgamations) Rules, 2016.

AND

IN THE MATTER OF SCHEME OF AMALGAMATION

AMONGST

1. **HANUMAN TEXTILE MANUFACTURING AND INVESTMENT COMPANY LIMITED**

Having Registered Office at:

1004-1010, DLF Tower A, 10th Floor,

Jasola District Center

New Delhi-110044

..... Applicant Company No. 1 / Transferor Company

SUNRISE MANUFACTURING COMPANY LIMITED

Having Registered Office at:

1004-1010, DLF Tower A, 10th Floor,

Jasola District Center

New Delhi-110044

..... Applicant Company No. 2 / Transferor Company No. 2

STERLING OXIDE LIMITED

Having Registered Office at:

1004-1010, DLF Tower A, 10th Floor,

Jasola District Center

New Delhi-110044

.....Applicant Company No. 3 / Transferor Company No.3

PRAVASI ENTERPRISES LIMITED

Having Registered Office at:

1004-1010, DLF Tower A, 10th Floor,

Jasola District Center

New Delhi-110044

..... Applicant Company No. 4 / Transferee Company

For the Applicants: Govind Rishi, Advocate

ORDER

M.M. KUMAR, PRESIDENT

1. This is an application filed by the applicant companies under Sections 230 to 232 and other applicable provisions of the Companies Act, 2013 (for brevity 'The Act') read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 (for brevity 'The Rules') in relation to the Scheme of Amalgamation (for brevity the "SCHEME") proposed amongst the applicants. The said Scheme is also annexed [Annexure "1"]. In terms of Sections 230 and 232 of the 2013 Act following prayers have been made for orders:-

   a) *To allow this application and approve and sanction the Scheme of arrangement proposed; and/ or*
   b) *Direct for dispensation of the meetings of Unsecured Creditors of the Transferor Companies; and/ or*
   c) *Direct for dispensation of the meetings of Equity Shareholders of the Transferor Companies; and/ or*
   d) *Direct for dispensation of the meetings of Unsecured Creditors of the Transferee Company; and/ or*
   e) *Direct for dispensation of the meetings of Equity Shareholders of the Transferee Company; and/ or*

f) Pass any such further as this Hon'ble Tribunal may deem fit and proper in the facts and circumstances of the case."

2. An affidavit in support of the application sworn for and on behalf of the all the Applicant Companies has been filed by one Mr. Sohan Lal Bagree being the authorized representative.

3. It is represented that the Scheme does not contemplate any corporate debt restructuring exercise as contemplated under Section 230(2) of the Act. Learned Counsel has taken us through the averments made in the application as well as the typed set of documents annexed there with. It is further represented that the application filed by the applicants is maintainable in view of Rule 3(2) of the Rules and Learned Counsel also represented that the registered offices of all the applicant companies are situated within the territorial jurisdiction of this Tribunal and fall within domain of Registrar of Companies, NCT, New Delhi.

4. In relation to the Transferor/ Applicant Company No. 1 it has been represented that company has **9** Equity Shareholders. We are further apprised that the Transferor / Applicant Company No.1 has no Secured Creditor & only 1 Unsecured Creditor. All the shareholders and the sole unsecured creditor have filed their consents by way of affidavits. In relation to the Shareholders &

Unsecured Creditors Transferor / Applicant Company No. 1 seeks a direction for dispensing with holding of meetings for the purpose of obtaining their approval to the proposed Scheme.

5. In relation to the Transferor/ Applicant Company No. 2 it has been represented that company has **8** Equity Shareholders. We are further apprised that the Transferor / Applicant Company No.1 has no Secured Creditor & 1 Unsecured Creditor. All the shareholders and the sole unsecured creditor have filed their consents by way of affidavits. In relation to the Shareholders & Unsecured Creditors, Transferor / Applicant Company No. 2 seeks a direction for dispensing with holding of meetings for the purpose of obtaining their approval to the proposed Scheme.

6. In relation to the Transferor/ Applicant Company No. 3 it has been represented that company has **10** Equity Shareholders. We are further apprised that the Transferor / Applicant Company No.1 has no Secured Creditor & 1 Unsecured Creditor. All the shareholders and the sole unsecured creditor have filed their consents by way of affidavits. In relation to the Shareholders & Unsecured Creditors, Transferor / Applicant Company No. 3 seeks a direction for dispensing with holding of meetings for the purpose of obtaining their approval to the proposed Scheme.

7. In relation to the Transferee/ Applicant Company No. 4, it has been represented that company has **8** Shareholders. We are further apprised that the Transferee / Applicant Company No.4 has **no** Secured and **1** Unsecured Creditor. All the shareholders and the sole unsecured creditor have filed their consents by way of affidavits. In relation to the Shareholders & Unsecured Creditors, Transferee / Applicant Company No. 4 seeks a direction for dispensing with convening and holding of meeting for the purpose of obtaining their approval to the proposed Scheme.

8. The above application has been placed before us and this Tribunal proceeds to entertain the same. The registered offices of all the applicant companies are situated within New Delhi which are subject to the territorial jurisdiction of Registrar of Companies, NCT, New Delhi as well as that of this Tribunal.

9. We have perused the application and the connected documents filed along with the Scheme of Amalgamation contemplated between the Applicant Companies.

10. Applicant Company No. 1 was incorporated in the state of Delhi under the provisions of Companies Act, 1956 on 03.12.1997 under the name "*Hanuman Textile Manufacturing and Investment Company Limited*". The authorised share capital of the Transferor Company is Rs 2,000,000 only divided into 200,000 equity shares of Rs. 10 each. The issued, subscribed and paid-up share

capital of the Company is Rs 1,550,700 only divided into 155,070 equity shares of Rs. 10 each.

11. Applicant Company No. 2 was incorporated in the state of Delhi under the provisions of Companies Act, 1956 on 14.12.1982 under the name "*Sunrise Manufacturing Company Limited*". The authorised share capital of the Transferor Company is Rs 5,000,000 only divided into 500,000 equity shares of Rs. 10 each. The issued, subscribed and paid-up share capital of the Company is Rs. 4,606,120 only divided into 460,612 equity shares of Rs. 10 each.

12. Applicant Company No. 3 was incorporated in the state of Delhi under the provisions of Companies Act, 1956 on 07.02.1992 under the name "*Sterling Oxide Limited*". The authorised share capital of the Transferor Company is Rs 95,000,000 only divided into 950,000 equity shares of Rs. 10 each. The issued, subscribed and paid-up share capital of the Company is Rs 9,325,000 only divided into 9,32,500 equity shares of Rs. 10 each.

13. Applicant Company No. 4 was incorporated in the state of Delhi under the provisions of Companies Act, 1956 on 14.12.1982 under the name "*Pravasi Enterprises Limited*". The authorised share capital of the Transferee Company is Rs.5,000,000, divided into 500,000 equity shares of Rs. Ten each. The

issued, subscribed and paid-up share capital of the Company is Rs. 4,115,600 divided into 4,11,560 equity shares of Rs Ten each.

14. The Board of Directors of the Companies vide meetings held on 02.07.2018 have unanimously passed resolutions and approved the proposed Scheme of Amalgamation as contemplated above and copies of resolutions have also been placed on record by the Companies.

15. Taking into consideration the application and the documents filed therewith, we propose to issue the following directions with respect to calling, convening and holding of the meetings of the Shareholders, Secured and Unsecured Creditors or dispensing with the same which are as follows:-

A. In relation to the Applicant No. 1/ Transferor Company:

i. With respect to Shareholders:

It is represented by the Applicant No. 1 that there are 9 Shareholders in the Company whose consent-affidavits have already been placed on record. Therefore the necessity of convening and holding a meeting is obviated.

ii. With respect to Secured Creditors:

Since it is represented by the Applicant No. 1 that there is no Secured Creditor in the Company, the necessity of convening and holding a meeting is obviated.

iii. With respect to Unsecured Creditors:

It is represented by the Applicant No. 1 that there is one Unsecured Creditor in the Company, consent from whom, in the form of an affidavit has already been placed on record. Hence, the necessity of convening and holding a meeting is obviated.

B. In relation to the Applicant No. 2/ Transferor Company No. 2:

i. With respect to Shareholders:

It is represented by the Applicant No. 2 that there are 8 Shareholders in the Company whose consent-affidavits have already been placed on record. Therefore the necessity of convening and holding a meeting is obviated.

ii. With respect to Secured Creditors:

Since it is represented by the Applicant No. 2 that there is no Secured Creditor in the Company, the necessity of convening and holding a meeting is obviated.

iii. With respect to Unsecured Creditors:

It is represented by the Applicant No. 2 that there is one Unsecured Creditor in the Company, consent from whom, in the form of an affidavit has already been placed on record. Hence, the necessity of convening and holding a meeting is obviated.

C. In relation to the Applicant No. 3/ Transferor Company:

i. With respect to Shareholders:

It is represented by the Applicant No. 3 that there are 10 Shareholders in the Company whose consent-affidavits have already been placed on record. Therefore the necessity of convening and holding a meeting is obviated.

ii. With respect to Secured Creditors:

Since it is represented by the Applicant No. 3 that there is no Secured Creditor in the Company, the necessity of convening and holding a meeting is obviated.

iii. With respect to Unsecured Creditors:

Since it is represented by the Applicant No. 3 that there is one Unsecured Creditor in the Company, consent from whom, in the form

of an affidavit has already been placed on record, the necessity of convening and holding a meeting is obviated.

D. In relation to the Applicant No. 4/ Transferee Company:

i. With respect to Shareholders:

Since it is represented by the Applicant No. 4 that there are 8 Shareholders in the Company whose consent-affidavits have already been placed on record. Therefore the necessity of convening and holding a meeting is obviated.

ii. With respect to Secured Creditors:

Since it is represented by the Applicant No. 4 that there is no Secured Creditor in the Company, the necessity of convening and holding a meeting is obviated.

iii. With respect to Unsecured Creditors:

Since it is represented by the Applicant No. 4 that there is one Unsecured Creditor in the Company, consent from whom, in the form of an affidavit has already been placed on record, the necessity of convening and holding a meeting is obviated.

16. Notice of this Application shall also be served on the Regional Director, Ministry of Corporate Affairs, B-2 Wing, 2nd Floor, Paryavaran Bhavan, CGO

Complex, New Delhi-110 003, Registrar of Companies at 4th Floor, IFCI Tower, 61, Nehru Place, New Delhi-110 019; the Official Liquidator, Lok Nayak Bhavan, 8th Floor, Khan Market, New Delhi -110 001; the office of the Income Tax Department, Income Tax Officer, Ward – 7(4), Central Revenue Building, IP Estate, New Delhi-110 002 and Office of the Income Tax Department, Income Tax Officer, Additional Commissioner of Income Tax, Special Range-4, Central Revenue Building, IP Estate, New Delhi-110 002. The notices to Income Tax authorities shall disclose sufficient details like PAN card numbers, ward numbers and assessing officers so that timely and proper reply may be filed.

The application stands allowed in the aforesaid terms.

Sd/-

(M.M. KUMAR) 16.10.2018

PRESIDENT

Sd/-

(S.K. MOHAPATRA)

MEMBER (TECHNICAL)

Pronounced today under Rule 151 of the NCLT Rules, 2016 as Shri S.K. Mohapatra, Hon'ble Member (T) is not holding court today.

Sd/-

(NIRMALA VINCENT)

COURT OFFICER

Vidya